

Secondly. Where the period is not fixed by the original settlement, but depends on a contingency, the rule applies as soon as the contingency happens (*d*). *Thirdly.* Where [*415] not only *the period but the class of children, in favour of whom the portions are to be raised, depends on a contingency (as when it is limited to take effect in case the father dies without issue male by his wife), there also on the contingency happening by the death of the wife without issue male the portions are raisable immediately, and the term is salable in the lifetime of the father (*a*). The Judge then expressed his entire concurrence in the principles laid down by Lord Eldon (viz. that the intention must be collected from the whole settlement taken together), and finding an express direction that the portions were to be paid at twenty-one or marriage, and that the settlement contained nothing at variance with that construction, he decreed the portions to be raised by sale or mortgage of the reversionary term.

4. General rule and exceptions.—Such are the general rules by which the Courts now profess to be governed. We must, however, add the caution that when the grounds upon which the Court acted in any case are not sufficient to warrant the decision upon a fair construction of the *instrument* itself, and independently of and apart from any arguments based on the *inconvenience* of burdening the estate, such case cannot at the present day be relied upon as an authority.

And *particular* and *special* cases have occurred in which the Court has refused to raise the portions out of a reversionary term.

Thus, in *Corbett v. Maidwell* (*b*), the estate was settled upon marriage on Thomas for life, remainder to trustees for

Bacon v. Clerk, Pr. Ch. 500; *Stanley v. Stanley*, 1 Atk. 549; *Conway v. Conway*, 3 B. C. C. 267; *Brome v. Berkley*, 2 P. W. 486, *per Cur.*; *Cotton v. Cotton*, 3 Y. & C. 149, note.

(*d*) As where the portions are to vest at such times as the father shall appoint and he has not yet appointed.

(*a*) *Hebblethwaite v. Cartwright*, For. 30; *Greaves v. Mattison*, 1 Eq.

Ca. Ab. 336; *Ravenhill v. Dansey*, 2 P. W. 180; *Smith v. Evans*, Amb. 633; *Staniforth v. Staniforth*, 2 Vern. 400. In other cases the contingency did not occur. See *Worsley v. Granville*, 2 Ves. sen. 331; *Hall v. Hewer*, Amb. 203; *Corbett v. Maidwell*, 1 Salk. 159.

(*b*) 1 Salk. 159.